

25CMCV00489 25CMCV00489

County: los-angeles

Division: Civil Law and Motion

Department: E

Hearing date: 2026-09-09

Motion: (1) MOTION TO COMPEL RESPONSES TO FORM INTERROGATORIES AND SPECIAL INTERROGATORIES, SETS ONE; (2) MOTION TO COMPEL RESPONSES TO REQUEST FOR PRODUCTION OF DOCUMENTS, SET ONE; (3) MOTION TO DEEM REQUESTS FOR ADMISSION, SET ONE, ADMITTED; AND (4) REQUESTS FOR SANCTIONS DATE: September 9, 2026 TIME: 8:30 A.M.

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=COM%2CE%2C09%2F09%2F2026

Source SHA-256: fa8a3b94a230bf0b950333a2198b4284badd70d9ee9133f36afe2c7cf6ea3c6b

Case Number: 25CMCV00489 Hearing Date: September 9, 2026 Dept: E

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES – SOUTH CENTRAL
DISTRICT

BILLY

BIGELOW, an individual,

Plaintiff,

vs.

PHH MORTGAGE; and DOES 1
through 50, inclusive,

Defendants.

)

)

)

)

)

)

)

)

)

)

)

)

)

)

)

)

)

)

CASE NO: 25CMCV00489

[TENTATIVE] ORDER RE: (1) MOTION TO COMPEL

RESPONSES TO FORM INTERROGATORIES AND SPECIAL INTERROGATORIES, SETS ONE; (2)

MOTION TO COMPEL RESPONSES TO REQUEST FOR PRODUCTION OF DOCUMENTS, SET ONE;

(3) MOTION TO DEEM REQUESTS FOR ADMISSION, SET ONE, ADMITTED; AND (4)

REQUESTS FOR SANCTIONS

DATE: September 9, 2026

TIME: 8:30 A.M.

DEPT.: E

Moving Party: Defendant

PHH Mortgage

Responding Party: None

Notice: Ok

Tentative Rulings: (1)

Defendant PHH Mortgage's Motion to Compel Responses to

Form Interrogatories and Special Interrogatories, Sets One,
is GRANTED.

(2) Defendant PHH Mortgage's Motion to Compel Responses to
Requests for Production of Documents, Set One, is GRANTED.

(3)

Defendant

PHH Mortgage's Motion to Deem Requests for Admission, Set One, Admitted is
CONDITIONALLY GRANTED.

(4)

Defendant

PHH's Requests for Sanctions is GRANTED IN A REDUCED AMOUNT.

I.

BACKGROUND

This is an

action for breach of contract related to a Note and Deed of Trust (the "DOT") executed
for the real property located at 1417 South Grandee Avenue, Compton, California
90220, including the residence located thereon (the "Property").

On March

24, 2025, Plaintiff Billy Bigelow ("Plaintiff") filed his Complaint against
Defendant PHH Mortgage ("PHH") and Does 1 through 50, inclusive (collectively,
"Defendants"). Plaintiff's Complaint alleged seven causes of action for (1) Breach
of Contract; (2) Breach of Implied Covenant of Good Faith and Fair Dealing; (3)

Unfair Business Practices in violation of Business & Professions Code §17200; (5) Wrongful Foreclosure; (6) Breach of Fiduciary Duty; (7) Violation of Homeowners Bill of Rights; and (8) Declaratory Relief.

On May 19, 2026, PHH filed the instant: (1) Motion to Compel Responses to Form Interrogatories and Special Interrogatories, Sets One; (2) Motion to Compel Responses to Requests for Production of Documents, Set One; and (3) Motion to Deem Requests for Admission, Set One, Admitted.[1]

As of September 8, 2026 no Opposition or Reply have been filed. Pursuant to Code Civ. Proc. § 1005(b), all papers opposing a noticed motion must be filed with the court and served on all other parties “at least nine court days ... before the hearing” and all reply papers at least five court days before the hearing. (Code Civ. Proc. § 1005(b).) Accordingly, any opposition or reply papers now filed are untimely, and the Court exercises its discretion to refuse to consider untimely filed papers. (Cal. R. Ct., Rule 3.1300(d); Mackey v. Bd. of Trustees of California State Univ. (2019) 31 Cal.App.5th 640, 657.)

II.

ANALYSIS

A.

Legal
Standards

1.

Special Interrogatories
and Form Interrogatories (collectively, the “ROGs”)

A party must respond to interrogatories within 30 days after service. (Code Civ. Proc., §2030.260(a).) If the responding party fails to timely respond, the requesting party may move for an order compelling response to the discovery. (Id., §2030.290(b).) Once compelled to respond, the responding party waives the right to make any objections, including ones based on privilege or work-product protection. (Id., §2030.290(a).) There is no time limit for a motion to compel responses to interrogatories other than the cut-off on hearing discovery motions 15 days before trial. (Id., §§ 2024.020(a), 2030.290.) No meet and confer efforts are required before filing a motion to compel responses to

the discovery. (See *Id.*, §2030.290; *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 411 (“*Sinaiko*”).)

2.

Requests for

Production of Documents (“RPDs”)

A party must respond to requests for production of documents within 30 days after service. (Code Civ. Proc. § 2031.260(a).) If the responding party fails to timely respond, the requesting party may move for an order compelling response to the discovery. (*Id.*, § 2031.300(c).) The responding party also waives the right to make any objections, including ones based on privilege or work-product protection. (*Id.*, §2031.300(a).) There is no time limit for a motion to compel responses to production of documents other than the cut-off on hearing discovery motions 15 days before trial. (*Id.*, §§2024.020(a), 2031.300.) No meet and confer efforts are required before filing a motion to compel responses to the discovery. (*Id.*, § 2031.300; *Sinaiko*, supra, 148 Cal.App.4th at p. 411.)

3.

Requests for Admission (“RFAs”)

A party must respond to requests for admission within 30 days after service. (Code Civ. Proc. § 2033.250(a).) If the responding party fails to provide a timely response, the responding party waives any objections to the requests, including ones based on privilege or work product. (*Id.*, § 2033.280(a).)

When timely responses are not received, the propounding party may move for an order deeming the truth of any matters specified in the requests as admitted. (Code Civ. Proc. § 2033.280(b).) The Court is required to make this order, unless it finds that the responding party served a proposed response that substantially complies with Code Civ. Proc. § 2033.220, and that such proposed response is served prior to the hearing on the motion. (*Id.*, § 2033.280(c).)

B.

Discussion

PHH seeks order requiring Plaintiff to respond to its Special Interrogatories, Set One, Form Interrogatories, Set One and Requests for Production of Documents, Set One. PHH further seeks and order deeming its Requests for Admission, Set One admitted and sanctions in a total amount of \$8,067.00 for its work in preparing all the Discovery Motions.

As to each of the Discovery Motions, PHH's counsel Kristina M. Pelletier ("Pelletier") attests that PHH served Plaintiff's counsel with the discovery requests via mail and email no January 26, 2026. (See Pelletier Decl. ISO ROGs Mot., ¶ 3, Exh. 1.)[2] Plaintiff's responses were due on March 2, 2026 and, having received no response, Pelletier emailed Plaintiff's counsel on March 6, 2026 inquiring as to the status of the responses. (Id., ¶¶ 4-5, Exh. 2.) PHH received no response to the March 6 email and again emailed Plaintiff's counsel on March 12, 2026. (Id., ¶¶ 5-6, Exh. 3.) Having again received no response, Pelletier sent a meet and confer letter via mail and email on March 24, 2026. (Id., ¶¶ 6-7, Exh. 4.) Pelletier also attempted to call Plaintiff's counsel on May 19, 2026 but was unable to reach a live person. (Id., ¶ 8.)

1.
ROGs Motion[3]
and RPDs Motion

PHH moves the Court for an order compelling Plaintiff's responses to Form Interrogatories, Set One and Special Interrogatories, Set One, as well as imposing monetary sanctions against Plaintiff in the amount of \$2,667.00. PHH also moves the Court for an order compelling Plaintiff's responses to Requests for Production, Set One and sanctions against Plaintiff in the additional amount of \$2,766.00.

As is noted above, PHH provides evidence that it served its initial requests on Plaintiff on January 26, 2026 and, after multiple attempts to obtain responses, no responses have been provided. Accordingly, the Court finds that an order compelling Plaintiff's responses is warranted. Plaintiff will be ordered to serve code-compliant responses, without objection, to PHH's Special Interrogatories, Set One, Form Interrogatories, Set One and Requests for Production of Documents, Set One.

2.

RFAs Motion

As with the SROGs and RPDs, PHH attests that it served its RFAs to Plaintiff on January 26, 2026 and, after multiple attempts to obtain a response, has still not received a response from Plaintiff. (See Pelletier Decl., ISO RFAs Mot., ¶¶ 3-8.) As is noted above, when there is no response the Court is required to make an order deeming RFAs admitted unless it finds that the responding party served a proposed response that substantially complies with Code Civ. Proc. § 2033.220 prior to the hearing on the motion. (Code Civ. Proc. § 2033.280(c).)

Accordingly, PHH's RFAs motion is **CONDITIONALLY GRANTED** pending the Court's inquiry at the hearing as to whether a response was provided prior to the hearing.

3.

Monetary Sanctions

"It is mandatory that the court impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated this motion." (Code Civ. Proc. § 2033.280(c).) Pursuant to the California Rules of Court, Rule 3.1348(a), "The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed." (Cal. Rules of Court, Rule 3.1348(a).)

PHH seeks sanctions against Plaintiff in the following amounts:

ROGs Motion: \$2,667.00 for the ROGs motion, consisting of: (1) 1.9 hours preparing the ROGs motion, and (2) an anticipated 6 hours reviewing any opposition and preparing a reply, all billed at Pelletier's rate of \$330 per hour. PHH also seeks \$60 in filing fees.
(Pelletier Decl. ISO ROGs Mot., ¶ 10.)

RPDs Motion: \$2,766.00 for the RPDs motion, consisting of: (1) 2.2 hours

preparing the RPDs motion, and (2) an anticipated 6 hours reviewing any opposition and preparing a reply, all billed at Pelletier's rate of \$330 per hour. PHH also seeks \$60 in filing fees.
(Pelletier Decl. ISO RPDs Mot., ¶ 10.)

RFAs Motion: \$2,634.00 for the RFAs motion, consisting of: (1) 1.8 hours preparing the RFAs motion, and (2) an anticipated 6 hours reviewing any opposition and preparing a reply, all billed at Pelletier's rate of \$330 per hour. PHH also seeks \$60 in filing fees.
(Pelletier Decl. ISO RFAs Mot., ¶ 10.)

Plaintiff has not responded to PHH's discovery nor has Plaintiff responded to the Discovery Motions. Accordingly, the Court finds that monetary sanctions are warranted. The Court finds that Pelletier's attested rate of \$330/hr is reasonable for an attorney in the Greater Los Angeles Area. However, because no oppositions or replies were filed the Court declines to award sanctions for PHH's anticipated time in reviewing any opposition or filing a reply. Also, given that the Discovery Motions are basic motions and certain aspects of the Discovery Motions are identical, the Court also declines to award full amounts for PHH's attested time spent in preparing the instant motions.

PHH is awarded a total of \$1,665.00 in sanctions, consisting of 1.5 hours per Discovery Motion at Pelletier's rate of \$330 per hour plus an additional \$60 per motion.

III.

CONCLUSION

(1)

PHH's

Motion to Compel Responses to Form Interrogatories, Set One and Special Interrogatories, Set One is GRANTED.

(2)

PHH's

Motion to Compel Responses to Requests for Production of Documents, Set One is GRANTED.

(3)

PHH's

Motion to Deem Requests for Admission, Set One, Admitted is CONDITIONALLY GRANTED.

(4)

PHH's

Requests for Sanctions are GRANTED IN THE REDUCED AMOUNT OF \$1,655.00.

Where granted, Plaintiff is ordered to serve code-compliant responses, without objection, no later than October 9, 2026. And Plaintiff is ordered to pay the awarded sanctions no later than October 9, 2026.

[1] PHH's May 19, 2026 filings are collectively referred to herein as the "Discovery Motions."

[2] Pelletier's declarations in support of the RPDs motion and the RFAs motion are nearly identical. Accordingly, the Court only cites to Pelletier's declaration filed in support of the SROGs motion, with the understanding that the citations carry across each Discovery Motion.

[3] PHH's ROGs Motion is actually comprised of two different motions improperly combined in one – one motion to compel responses to form interrogatories and one motion to compel responses to special interrogatories. The Government Code, and the Court Reservation System, requires a separate hearing date reservation and filing fees for each motion. Further, it is mandatory for court clerks to demand and receive filing fees. (See Gov. Code § 70617(f); Duran v. St. Luke's Hospital (2003) 114 Cal.App.4th 457, 460.) Moving Defendants have only paid one filing fee for these two motions. While the Court will waive the additional filing fee for this filing, PHH is cautioned to file separate motions should the need again arise.